

FL-25-000107 FELL VS FELL

County: stanislaus

Division: Family Law

Department: 13

Hearing date: 2026-07-09

Motion: Respondent's Request for Order re Set Aside Default Judgment—DENIED. The default judgment in this matter was entered on November 5, 2025, and Notice of Entry was filed and served on even date. Respondent's Request for Order seeking set aside pursuant to Code of Civil Procedure section 473(b) was filed on May 13, 2026. Respondent's Proof of Service avers mail service of the order request on May 26, 2026. Accordingly, the six-month outside limit on motions seeking discretionary set aside expired on May 4, 2026, and the Court is compelled to deny the order request as untimely. The express language of section 473(b) states that the application for discretionary relief must be made "within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (Id.) It is settled law that the application must be both filed and served within the six month outside time limit. (Arambula v. Union Carbide Corp. (2005) 128 Cal.App.4th 333, 341-342 [473(b) motion untimely where filed within 6-month deadline but not served within that time].) As noted by a leading practice guide, "The outside six-month limit on seeking CCP § 473(b) relief is jurisdictional. Unless the motion is both filed and served during the six-month period, the court has no authority to grant the requested relief ... regardless of the underlying merits and whether or not there is a reasonable excuse for the delay." (Hogoboom & King, Cal. Prac. Guide Family L. (TRG 2026) Ch. 16-A, § 16:56, citing Arambula, supra, 128 Cal.App.4th at 342 fn. 8; Rappleyea v. Campbell (1994) 8 Cal.4th 975, 980.) Moreover, if the 6-month time limit were computed based on the entry of the underlying default, which in this case occurred even earlier on March 14, 2025, then there can be no argument that the motion is not untimely. And in default cases, like the case at bar, it is also now settled law that the date of entry of default starts the countdown on 473(b) relief because if relief were only granted as to the entry of judgment without relief from default then the default would remain intact and the respondent would still be "out of court" and without the right to file a responsive pleading. Granting set aside would then be an exercise in futility, i.e., an "idle act," which the law abhors. (Rutan v. Summit Sports, Inc. (1985) 173 Cal.App.3d 965, 970; Civ. Code, § 3532 ["The law neither does nor requires idle acts"].) Given the preceding, Petitioner's arguments regarding the requirements of party motions for reconsideration pursuant to Code of Civil Procedure section 1008(a) or renewals pursuant to section 1008(b) are moot. And likewise for the merits of Respondent's alleged grounds for mistake, surprise, inadvertence or excusable neglect pursuant to section 473(b). That said, this denial is without prejudice to any timely and properly posture motion that may be filed pursuant to Family Code section 2120 et seq., but that is not presently before the Court. The following are the tentative ruling cases calendared before Judge Sarah Birmingham in Department #14: THERE ARE NO TENTATIVES. The following are the tentative ruling cases calendared before Judge Maria Elena Ramos-Ratliff in Department #25: THERE ARE NO TENTATIVES. Administrative ADA Accommodations Locations and Contact Info Privacy Policy Attorney Resources Judicial Council Forms Court Calendars California Court Self-Help Center California Judicial Branch Public Resources Court Holidays Stanislaus County Employee Access Outlook Share Point Superior Court of California County of Stanislaus Judicial Branch of California Privacy Terms of Use © 2026

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/family-law-tentative-rulings>

Source SHA-256: c53fbd4709b57eb5570441cf6c36a400f0f52c53ef118680c3825ffe5e9cf81a

FL-25-000107 – FELL VS FELL

Respondent's Request for Order re Set Aside Default Judgment—DENIED.

The default judgment in this matter was entered on November 5, 2025, and Notice of Entry was filed and served on even date. Respondent's Request for Order seeking set aside pursuant to Code of Civil Procedure section 473(b) was filed on May 13, 2026. Respondent's Proof of Service avers mail service of the order request on May 26, 2026. Accordingly, the six-month outside limit on motions seeking discretionary set aside expired on May 4, 2026, and the Court is compelled to deny the order request as untimely.

The express language of section 473(b) states that the application for discretionary relief must be made "within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (Id.) It is settled law that the application must be both filed and served within the six month outside time limit. (Arambula v. Union Carbide Corp.

(2005) 128 Cal.App.4th 333, 341-342 [473(b) motion untimely where filed within 6-month deadline but not served within that time].)

As noted by a leading practice guide, “The outside six-month limit on seeking CCP § 473(b) relief is jurisdictional. Unless the motion is both filed and served during the six-month period, the court has no authority to grant the requested relief ... regardless of the underlying merits and whether or not there is a reasonable excuse for the delay.” (Hogoboom & King, Cal. Prac. Guide Family L. (TRG 2026) Ch. 16-A, § 16:56, citing Arambula, supra, 128 Cal.App.4th at 342 fn. 8; Rappleyea v. Campbell (1994) 8 Cal.4th 975, 980.)

Moreover, if the 6-month time limit were computed based on the entry of the underlying default, which in this case occurred even earlier on March 14, 2025, then there can be no argument that the motion is not untimely. And in default cases, like the case at bar, it is also now settled law that the date of entry of default starts the countdown on 473(b) relief because if relief were only granted as to the entry of judgment without relief from default then the default would remain intact and the respondent would still be “out of court” and without the right to file a responsive pleading. Granting set aside would then be an exercise in futility, i.e., an “idle act,” which the law abhors. (Rutan v. Summit Sports, Inc. (1985) 173 Cal.App.3d 965, 970; Civ. Code, § 3532 [“The law neither does nor requires idle acts”].)

Given the preceding, Petitioner’s arguments regarding the requirements of party motions for reconsideration pursuant to Code of Civil Procedure section 1008(a) or renewals pursuant to section 1008(b) are moot. And likewise for the merits of Respondent’s alleged grounds for mistake, surprise, inadvertence or excusable neglect pursuant to section 473(b). That said, this denial is without prejudice to any timely and properly posture motion that may be filed pursuant to Family Code section 2120 et seq., but that is not presently before the Court.

The following are the tentative ruling cases calendared before Judge Sarah Birmingham in Department #14:

THERE ARE NO TENTATIVES.

The following are the tentative ruling cases calendared before Judge Maria Elena Ramos-Ratliff in Department #25:

THERE ARE NO TENTATIVES.

Administrative

ADA Accommodations

Locations and Contact Info

Privacy Policy

Attorney Resources

Judicial Council Forms

Court Calendars

[California Court](#)

[Self-Help Center](#)

[California Judicial Branch](#)

[Public Resources](#)

[Court Holidays](#)

[Stanislaus County](#)

[Employee Access](#)

[Outlook](#)

[Share Point](#)

[Superior Court of California
County of Stanislaus](#)

[Judicial Branch of California](#)

[Privacy](#)

[Terms of Use](#)

© 2026